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Case Number: 25STCV37481 Hearing Date: July 21, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

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SUSAN ALMADOVA,

Plaintiff,

vs.

MILON PLUAS LLP, et al.,

Defendants.

Case No.:

25STCV37481

Hearing Date:

July 21, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE] ORDER RE:

DEFENDANTS'

NOTICE OF MOTION AND SPECIAL MOTION TO STRIKE PLAINTIFF'S COMPLAINT PURSUANT
TO CODE OF CIVIL PROCEDURE SECTION 425.16

Background

On

December 22, 2025, Plaintiff Susan Almadova ("Plaintiff") sued Defendants Milon
Pluas LLP, dba Worker's Rights Legal Group, Angel D. Pluas, Joshua Milon,
Christopher J. DeClue (collectively, "Attorney Defendants"), and William
Hougland ("Hougland"), alleging one cause of action for malicious prosecution.

On

March 13, 2026, Attorney Defendants filed a special motion to strike the sole
cause of action in the complaint. Plaintiff opposes. Attorney Defendants replied.

Request for Judicial Notice

The

Court grants Plaintiff's request for judicial notice of Exhibits 1, 4, 5, 6, 13,
14, and 15.

Evidentiary

Objections

The Court rules on

Plaintiff's evidentiary objections as follows:

Objection Nos. 1, 2: sustained

Legal

Standard

A party may file a special motion to

strike to dismiss entire complaints, specific causes of action, or portions of
a cause of action when the party believes the lawsuit is a strategic attempt to
infringe upon their "valid exercise of the constitutional rights of freedom of

speech and petition for the redress of grievances.” (Code Civ. Proc., § 425.16, subd. (a).) The anti-SLAPP statute (strategic lawsuits against public participation) protects parties from frivolous lawsuits: “you have a right not to be dragged through the courts because you exercised your constitutional rights.” ((People ex rel. Lockyer v. Brar (2004) 115 Cal.App.4th 1315, 1317.) The legislature intended this statute to be construed broadly. (Code Civ. Proc., § 425.16, subd. (a).)

Anti-SLAPP

actions must be filed within 60 days of service of the operative complaint and stays discovery until after disposition of the motion. (Code Civ. Proc., § 425.16, subds. (f), (g).)

Anti-SLAPP

actions employ a two-step analysis to determine the merits. (Navellier v. Sletten (2002) 29 Cal. 4th 82, 88 (Navellier).) In the first prong, the defendant must make a threshold showing that the challenged cause of action arises from protected activity. (Ibid.) “A defendant meets this burden by demonstrating that the act underlying the plaintiff’s cause fits one of the [following] categories:” (Ibid.)

(1) any

written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law,

(2) any

written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law,

(3) any

written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or

(4) any other

conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).) If the court finds the defendant made the requisite showing, the burden shifts to the plaintiff to demonstrate the probability that their cause(s) of action will succeed. (Code Civ. Proc. § 425.16, subd. (b)(1); *Navellier*, supra, at p. 88-89.)

The second step employs a “summary-judgment-like procedure,” because the court will not weigh evidence or resolve conflicting factual claims. (*Sweetwater Union High School District v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 940 (*Sweetwater*).) The court’s inquiry is limited to whether the plaintiff “stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment.” (*Ibid.*) This burden is minimal; however, a plaintiff cannot solely rely on their complaint—even if verified. (*Ibid.*) Instead, they must provide competent evidence, which the court accepts as true. (*Ibid.*) The court will only evaluate the defendant’s showing “to determine if it defeats the plaintiff’s claim as a matter of law.” (*Ibid.*)

“Only a cause of action that satisfies both prongs of the anti-SLAPP statute—i.e., that arises from protected speech or petitioning and lacks even minimal merit—is a SLAPP, subject to being stricken under the statute.” (*Navellier*, supra, at p. 89.)

If a defendant prevails on their anti-SLAPP motion, they are entitled to attorney fees and costs as a matter of right. (Code Civ. Proc. § 425.16, subd. (c)(1).) However, if the anti-SLAPP motion is deemed frivolous or intended to cause unnecessary delay, the court will award the prevailing plaintiff reasonable fees, pursuant to Code of Civil Procedure section 128.5. (*Ibid.*)

Discussion

Attorney

Defendants move to strike the sole cause of action alleged in Plaintiff’s complaint, which alleges malicious prosecution.

A. Prong One: Protected Activity

The Anti-SLAPP Statute

protects “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).)

Attorney Defendants

assert that “Ms. Almadova’s malicious prosecution claims are based solely on WRLG’s activities as counsel for Mr. Hougland in the Underlying Lawsuit. Ms. Almadova does not allege that WRLG acted outside of this context. Regardless of whether the Underlying Lawsuit was maintained maliciously, the act of filing pleadings in a civil action on behalf of a client is per se protected petitioning activity under the Anti-SLAPP statute.” (Mot., 12:10-14.) Plaintiff does not appear to dispute this.

In the complaint, it

states, “[i]n February 2024, Defendants commenced retaliatory litigation against Ms. Almadova in the Superior Court of California, County of Orange (Hougland v. Cannon Cochran Management Services, Inc. and Susan Almadova -- later removed to the United States District Court for the Central District of California, Southern Division, USDC Case No. 8:24-00532 JWH ADS), asserting two frivolous claims: violation of California Labor Code section 1102.5 (Whistleblower Retaliation) and Age Harassment in violation of the Fair Employment and Housing Act (‘FEHA’) (the ‘Hougland Matter’). The Hougland Matter asserted the same two claims and eight additional claims against CCMSI.” (Compl., ¶ 4.) The complaint alleges that “Defendants, willfully disregarding the fact that Mr. Hougland could not identify a single instance in which Ms. Almadova engaged in any discriminatory or harassing conduct or speech (much less a pattern), drafted and filed a public document falsely accusing Ms. Almadova of ‘a pattern and practice of harassing [Mr. Hougland],’ ‘engaging in offensive conduct,’ and ‘acting in a hostile and abusive manner’ toward him.” (Compl., ¶ 6.)

Because Plaintiff’s

complaint solely and directly arises from Attorney Defendants' litigation of and involvement in the Hougland Matter, Plaintiff's complaint is predicated on protected petitioning activity. Thus, the cause of action arises out of protected activity, and prong one is satisfied.

B.

Prong Two: Probability of Success on the Merits

Attorney

Defendants demonstrated that the cause of action arises out of protected activity, so the burden shifts to Plaintiff to show that "each challenged claim based on protected activity is legally sufficient and factually substantiated." ((Baral v. Schnitt (2016) 1 Cal.5th 376, 396.) Affidavits, declarations, and their equivalents may be considered in evaluating an anti-SLAPP motion, so long as the evidence is admissible or reasonably capable of being admitted at trial. (Sweetwater, supra, 6 Cal.5th at p. 949.)

"[I]n

order to establish a cause of action for malicious prosecution of either a criminal or civil proceeding, a plaintiff must demonstrate "that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff's, favor [citations]; (2) was brought without probable cause [citations]; and (3) was initiated with malice.'" ((Van Audenhove v. Perry (2017) 11 Cal.App.5th 915, 919.)

a.

Favorable Termination

"A

favorable termination does not occur merely because a party complained against has prevailed in an underlying action. While the fact he has prevailed is an ingredient of a favorable termination, such termination must further reflect on his innocence of the alleged wrongful conduct. If the termination does not relate to the merits—reflecting on neither innocence of nor responsibility for the alleged misconduct—the termination is not favorable in the sense it would support a subsequent action for malicious prosecution. [W]hen the underlying action is terminated in some manner other than by a judgment on the merits, the court examines the record to see if the disposition reflects the opinion of the court or the prosecuting party that the action would not succeed." (Sycamore Ridge Apartments, LLC v. Naumann (2007)

157 Cal.App.4th 1385, 1399 (Sycamore Ridge) [internal quotations and citations omitted].)

Attorney Defendants' motion asserts

that Plaintiff "cannot plead malicious prosecution as to the Whistleblower claim because her dismissal from that cause of action was obtained through a stipulation, in which Ms. Almadova agreed to a waiver of fees and costs." (Mot., 13:17-19.) Attorney Defendants concede that "[u]nlike the Whistleblower claim, WRLG does not dispute that the underlying age harassment claim was terminated in Ms. Almadova's favor. However, WRLG strongly contends Ms. Almadova still cannot show the Underlying Lawsuit was brought without probable cause or with malice." (Mot., 14:13-15.)

Plaintiff asserts that "[w]hile admitting the age harassment claim was terminated on the merits, the Attorney Defendants misleadingly portray their dismissal of Hougland's whistleblower retaliation claim as a non-merits-based compromise in exchange for Almadova's waiver of fees and costs and argue that a negotiated dismissal is not a 'favorable termination' for purposes of a malicious prosecution claim. What the Attorney Defendants fail to disclose is that the stipulation merely gave effect to their unilateral decision to abandon their whistleblower retaliation claim by filing a Notice of Non-Opposition to Almadova's Motion to Dismiss – a decision made before any discussion of a stipulation (with or without a fee and cost waiver)." (Opp., 12:9-16.)

Plaintiff provides supporting

evidence for how the motion to dismiss stipulation arose. Plaintiff provides the declaration from her counsel, Jeffrey M. Cohon, who "personally handled the defense of the Hougland Action since CCMSI and Ms. Almadova first made an appearance in the District Court." (Cohon Decl., ¶ 2.) Cohon attests that he "sent a detailed meet and confer letter to the Attorney Defendants advising them that their claim for whistleblower retaliation against Ms. Almadova pursuant to Labor Code section 1102.5 was improper because the whistleblower statute did not provide for individual liability. I also provided legal authority supporting this position, including judicial decisions from the Central District of California specifically holding that supervisors cannot – as a matter of law – be liable for an alleged violation of the whistleblower statute." (Cohon Decl., ¶ 3, Ex. 2.) Cohon explains that during a meeting with Mr. DeClue, counsel of record for the Hougland Matter, "Mr. DeClue could not identify a single case holding that an individual

supervisor could be liable under Labor Code section 1102.5. Instead, Mr. DeClue inaccurately claimed that the whistleblower statute had been amended to provide for liability of a supervisor. I asked Mr. DeClue for any authority to support his position that the statute had been amended to provide for individual liability, but he did not provide it to me.” (Cohon Decl., ¶ 4, Ex. 3.) The email from Mr. DeClue provides that “I reviewed your position regarding individual liability for Labor Code 1102.5 claims. I appreciate your diligence. However, I sense that we will agree to disagree. Individual liability has been a grey area for the Court for years. However, in 2023, the legislature made it very clear by amending the statute to clarify that individuals can be named in Labor Code 1102.5 claims.” (Cohon Decl., Ex. 3, p. 48.) In response, on March 25, 2024, Cohon stated that “we respectfully disagree with your contention that in 2023 the California Legislature amended Labor Code section 1102.5 to provide for individual liability. For your review, we attach the 2023 amendment to Labor Code section 1102.5. The handful of amendments to section 1102.5 address other issues entirely. Interestingly, this past week, another federal district court adopted the reasoning in Sean Dawson (and other cases) and dismissed the plaintiff’s individual whistleblower claim against his supervisor. Jack Arne Friedman V. Brooke Jenkins 2024 WL 1182878, at *6 (N.D. Cal. Mar. 19, 2024). We know that you said in your last email that the parties will have to agree to disagree, but we are writing to revisit this issue one last time before we file a motion to dismiss this claim.” (Cohon Decl., Ex. 3, p. 46.)

Cohon

attests that Mr. DeClue did not respond to his March 25, 2024 communications, so he “had no choice but to file the Motion to Dismiss seeking dismissal of the Labor Code section 1102.5 claim alleged against Ms. Almadova, which I did on April 12, 2024.” (Cohon Decl., ¶ 8, Ex. 4.) Cohon explains that, in response to the motion, Attorney Defendants filed a non-opposition, and “[o]n April 26, 2024, in the interest of cooperation and so that the Court would not have to waste time working up the unopposed motion, and because this dismissal was early in the litigation, Ms. Almadova thereafter stipulated pursuant to Fed. R. Civ. P. 41(a)(2) to allow Mr. Hougland to dismiss his whistleblower claim against her. Importantly, up to that point, the Attorney Defendants failed to provide me with any authority to support a possible opposition to Ms. Almadova’s Motion to Dismiss, despite refusing to dismiss Plaintiff’s whistleblower claim prior to forcing Ms.

Almadova to file her dismissal motion.” (Cohon Decl., ¶¶ 9-10, Exs. 5-6.)

However,

as Attorney Defendants point out, a negotiated dismissal or compromise “does not constitute a ‘favorable termination.’” ((Ludwig v. Superior Court (1995) 37 Cal.App.4th 8, 29.) Which, they contend, “is exactly what occurred here. Ms. Almadova agreed to dismissal of the Whistleblower claim in exchange for a waiver of fees and costs in April 2024. A fee-and-cost waiver constitutes consideration sufficient to show compromise, even where no money is paid, and it defeats favorable termination as a matter of law.” (Reply, 5:1-4.)

Plaintiff

asserts that “the Attorney Defendants’ decision to not oppose Almadova’s motion to dismiss that claim on the merits is a concession that their claim ‘would not succeed’ and lacked legal probable cause. The proposal to file a stipulation of dismissal, solely to avoid an unnecessary hearing on an unopposed motion, arose after the non-opposition.” (Opp., 12:26-13:2.) Plaintiff contends that “[b]y electing not to oppose Almadova’s motion, ‘the inference is unavoidable that the decision to abandon [that claim] was made independently’ of whether Almadova would later stipulate to a waiver of fees and costs to formalize the dismissal more expeditiously.” (Opp., 12:16-19, citing Roche v. Hyde (2020) 51 Cal.App.5th 757, 792.)

“[W]hen

the underlying action is terminated in some manner other than by a judgment on the merits, the court examines the record to see if the disposition reflects the opinion of the court or the prosecuting party that the action would not succeed.” (Sycamore Ridge, supra, 157 Cal.App.4th at p. 1399 [internal quotations omitted].) The record demonstrates that Attorney Defendants conceded the motion to dismiss by filing a non-opposition, before the stipulation was ever discussed or executed. The inference can thus be made that Attorney Defendants’ decision to abandon the whistleblower cause of action occurred before the parties stipulated to dismiss the cause of action. (See Roche v. Hyde, supra, 51 Cal.App.5th at p. 792.)

Given

the notice of non-opposition filed by Attorney Defendants, the legal arguments that Plaintiff’s counsel provided when meeting and conferring with Attorney

Defendants, and Attorney Defendants' failure to provide a cogent response, the Court finds that the record supports that the termination was favorable to Plaintiff. Accordingly, Plaintiff demonstrates a probability of success for the first element of malicious prosecution.

b.

Probable Cause

"[A]n

attorney may be held liable for malicious prosecution for continuing to

prosecute a lawsuit discovered to lack probable cause." ((Zamos v. Stroud (2004) 32 Cal.4th 958, 970.) "'An action is deemed to have

been pursued without probable cause if it was not legally tenable when viewed

in an objective manner as of the time the action was initiated or while it was

being prosecuted.' The test is whether, on the basis of facts then known, any

reasonable attorney would have believed that instituting or maintaining the

prior action was tenable." ((Citizens of Humanity,

LLC v. Hass (2020) 46 Cal.App.5th

589, 599 (Citizens).) "Probable cause, moreover, must exist

for every cause of action advanced in the underlying action. '[A]n action for

malicious prosecution lies when but one of alternate theories of recovery is

maliciously asserted....'" ((Soukup v. Law Offices

of Herbert Hafif (2006) 39 Cal.4th

260, 292.) Granting an anti-SLAPP is not proper "when there is a

dispute as to the state of the defendant's knowledge and the existence of

probable cause turns on resolution of that dispute, [because] there becomes a

fact question that must be resolved before the court can determine the legal

question of probable cause." (Citizens, supra, 46

Cal.App.5th at pp. 599-600.)

1.

Whistleblower Retaliation

Under

Labor Code section 1102.5, employers may not

obstruct an employee from disclosing information about "a violation of state or

federal statute, or a violation of or noncompliance with a local, state, or

federal rule or regulation." (Lab.

Code, § 1102.5, subd.

(a).) Also, employers may not retaliate against employees

who disclose such information or who “refus[e] to participate in an activity that would result in a violation of federal or state law, rule, or regulation.” (Lab. Code, § 1102.5, at subds. (b)-(c).)

To state a prima facie case for whistleblower retaliation, “a plaintiff must show that she engaged in protected activity, that she was thereafter subjected to adverse employment action by her employer, and there was a causal link between the two.” (Morgan v. Regents of Univ. of California (2000) 88 Cal.App.4th 52, 69.) “The retaliatory motive is proved by showing that plaintiff engaged in protected activities, that his employer was aware of the protected activities, and that the adverse action followed within a relatively short time thereafter. [Citation.] The causal link may be established by an inference derived from circumstantial evidence, such as the employer’s knowledge that the [employee] engaged in protected activities and the proximity in time between the protected action and allegedly retaliatory employment decision.” (Id. at pp. 69-70 [internal quotations omitted].)

Plaintiff contends that “[t]he whistleblower retaliation claim against Almadova lacked both legal and factual probable cause from inception. Just two weeks before the filing of the Hougland Complaint, yet another federal district court held that Labor Code section 1102.5 does not permit an alleged whistleblower to recover money damages from an individual who retaliated against him on behalf of an employer... In light of this authority, no reasonable attorney could have believed Hougland had a viable whistleblower retaliation claim against Almadova. Nevertheless, when provided with this authority, and more, the Attorney Defendants forced Almadova to file a motion to dismiss – only to not oppose it.” (Opp., 16:16-25.)

The District Court noted when it granted Almadova’s Motion for Summary Judgment that “it is evident from the record that Hougland’s Motion to Dismiss is an attempt to circumvent an adverse ruling on Defendants’ Motion for Summary Judgment. Even when it was blatantly clear to Hougland that his claim against Almadova was fruitless, he continued to pursue that claim until he was confronted with Defendants’ Motion for Summary Judgment. Such an abuse of Rule 41(a) is inappropriate.” (Cohon Decl., ¶ 41, Ex. 14, pp. 212-213.)

Based on the information and analysis of the Favorable Termination section, *supra*, Plaintiff establishes that she has a probability of success for lack of probable cause for the whistleblower cause of action, because Plaintiff's counsel directed Attorney Defendants to adverse authority, could not substantiate authority in support of their position, and still maintained the cause of action until Plaintiff filed the motion to dismiss. Additionally, as the District Court addressed in its decision on the motion for summary judgment, the cause of action for whistleblower retaliation against Plaintiff was "fruitless."

2.

Age Harassment

For

a harassment cause of action, a plaintiff must "show that (1) he was a member of a protected class; (2) he was subjected to unwelcome [] harassment; (3) the harassment was based on [membership in the protected class]; (4) the harassment unreasonably interfered with his work performance by creating an intimidating, hostile, or offensive work environment; and (5) the [employer] is liable for the harassment." (*Thompson v. City of*

Monrovia (2010) 186

Cal.App.4th 860, 876; see also *Dickson v. Burke Williams, Inc.* (2015) 234 *Cal.App.4th* 1307, 1313 ["One of the elements of a harassment claim ... is that the harassment be sufficiently severe or pervasive so as to alter the conditions of employment and create an abusive working environment."].) The elements of severe or pervasive harassment unreasonably interfering with work performance are assessed from the perspective of a reasonable person of the protected class of the plaintiff. (*Id.* at p. 877.)

Under Government

Code section 12932 subdivision (a), "harassment creates a hostile, offensive, oppressive, or intimidating work environment and deprives victims of their statutory right to work in a place free of discrimination when the harassing conduct sufficiently offends, humiliates, distresses, or intrudes upon its victim, so as to disrupt the victim's emotional tranquility in the workplace, affect the victim's ability to perform the job as usual, or otherwise interfere with and undermine the victim's personal sense of well-being." "A single incident of harassing conduct is sufficient to create a

triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Gov. Code, § 12923, subd. (b).)

"The existence of a hostile work environment depends upon the totality of the circumstances and a discriminatory remark, even if not made directly in the context of an employment decision or uttered by a nondecisionmaker, may be relevant, circumstantial evidence of discrimination." (Gov. Code, § 12923, subd. (c).)

Here,

Attorney Defendants assert that they "had probable cause to file the underlying age harassment cause of action based on its initial understanding of the facts and the representations made by Mr. Hougland at the outset of the Underlying Lawsuit. (DeClue Decl., ¶¶ 50–53, 56–58.) Mr. DeClue was provided with pertinent information regarding Ms. Almadova's pattern of hostility and animosity toward Mr. Hougland, and he formed a good-faith belief—under the objective probable cause standard—that Ms. Almadova was the person responsible for the age-related comments made to Mr. Hougland during his termination meeting. (Id. ¶ 56.) In other words, based on the evidence available at the time, WRLG reasonably believed Ms. Almadova was culpable for the age harassment alleged." (Mot., 16:20-27.)

DeClue's declaration specifically states that he "considered the following in naming Almadova for age harassment: Mr. Hougland was 67 years old at the time of his termination; Ms. Almadova treated Ms. Hougland with hostility from the time she began managing him; CCMSI had no problems with Mr. Hougland until Ms. Almadova supervised him; Ms. Almadova took actions that led to Mr. Hougland's termination; in Mr. Hougland's termination meeting, he was told that he is not getting any younger and that he should retire." (DeClue Decl., ¶ 51.) Plaintiff's opposition points out that "[n]oticeably absent are any facts to satisfy the actual elements of an age harassment claim, namely, that Hougland was subjected to 'verbal or physical conduct of an age-related nature, that the conduct was unwelcome, and that the conduct was sufficiently severe or pervasive to alter the conditions of [his] employment and create an abusive work environment.'" (Opp., 14:23-26 [emphasis omitted].)

"Being unfriendly, causing someone's termination, and suggesting retirement during the meeting when they are being terminated is not age harassment – as the District Court found when it granted Almadova's Motion for Summary Judgment." (Opp., 14:27-15:1; see also Cohon Decl., ¶ 41, Ex. 14, p. 218 ["The

record is devoid of facts that support a harassment claim against Almadova. It is undisputed that Hougland could not recall any discriminatory statements or conduct by Almadova regarding his age, nor any person's age. Hougland agrees that his age harassment claim against Almadova cannot be substantiated, due to a lack of evidence.”.)

Plaintiff asserts that “the factors concocted by the Attorney Defendants are directly contradicted by the Hougland Complaint. The Attorney Defendants alleged in the Hougland Complaint that Almadova’s hostility began after Hougland (supposedly) complained about one of her directives in May 2023, (Cohon Decl., Ex. 1 at ¶ 24) not immediately after she was appointed his supervisor in November 2022 (DeClue Decl., ¶ 51).” (Opp., 15:5-9.) As noted by Plaintiff, the Hougland complaint states that Hougland “complained to Defendants, including Defendant Almodova” and “[s]hortly after reporting CCMSI’s violations, and thereafter complaining about and/or opposing Defendant’s illegal business practices, ... Plaintiff’s superiors, including Defendant Almodova, began to treat him with hostility.” (Cohon Decl., Ex. 1, ¶¶ 23-24.) Plaintiff avers that “[t]he Attorney Defendants’ attempt to now modify the allegations of the Hougland Complaint to imply ageism rather than retaliation (when there was neither) is itself evidence that the facts as alleged did not support probable cause.” (Opp., 15:9-11.) When an attorney “actively advocated the changed story and abandoned the facts as pleaded in the complaint[,] [i]t is probable a jury could find [the attorney] knowingly prosecuted a false claim.” ((Golden State Seafood, Inc. v. Schloss (2020) 53 Cal.App.5th 21, 37.)

Plaintiff points to Attorney Defendants’ lack of evidence about ongoing and pervasive age harassment before prosecuting the Hougland lawsuit to support the lack of probable cause. Plaintiff also presents evidence in Hougland’s complaint that the harassment complained of by Hougland arose after he complained to management, but DeClue’s declaration in support states that “Ms. Almadova treated Ms. Hougland with hostility from the time she began managing him.” (DeClue Decl., ¶ 51.) This directly conflicts with the Hougland complaint. Moreover, as stated above, in the District Court’s order for the motion for summary judgment, the Court stated that the “record is devoid of facts that support a harassment claim against Almadova.” (Cohon Decl., ¶ 41, Ex. 14, p. 218.) This is probative evidence that Attorney Defendants pursued a meritless cause of action.

Accordingly,

Plaintiff presents competent evidence that Attorney Defendants pursued the age harassment cause of action despite lacking probable cause.

c.

Malice

“The

malice element of the malicious prosecution tort goes to the defendant's subjective intent in initiating the prior action. For purposes of a malicious prosecution claim, malice is not limited to actual hostility or ill will toward the plaintiff. Rather, malice is present when proceedings are instituted primarily for an improper purpose. Suits with the hallmark of an improper purpose include, but are not necessarily limited to, those in which: ... (1) the person initiating them does not believe that his claim may be held valid; (2) the proceedings are begun primarily because of hostility or ill will; (3) the proceedings are initiated solely for the purpose of depriving the person against whom they are initiated of a beneficial use of his property; (4) the proceedings are initiated for the purpose of forcing a settlement which has no relation to the merits of the claim. (Sycamore Ridge Apartments, supra, 157 Cal.App.4th at p. 1407 [internal quotations and citations omitted].) “[E]vidence that an attorney failed to conduct an adequate investigation before filing a lawsuit supports a finding of malice.” (Citizens, supra, 46 Cal.App.5th at p. 607 [internal citation omitted].)

Plaintiff

discusses that “the Attorney Defendants argue that they reasonably (but mistakenly) believed they had probable cause for the age harassment claim until they ‘learned’ – during their own client’s deposition – that Almadova was not the ‘female in management’ who mentioned retirement during Hougland’s termination (Mtn. at 20.) However, they clearly knew this months before Hougland’s March 2025 deposition – evidenced by the facts that in August 2024 they served written discovery but did not ask about age harassment, and they deposed Almadova in January 2025 and did not ask her a single question relating to age harassment.” (Opp., 15:20-26; see Cohon Decl., ¶ 13 [“The first deposition taken in the case was of Ms. Almadova, taken on January 29, 2025. Even though Mr. Hougland’s third cause of action for age harassment alleged that Ms. Almadova displayed ‘a pattern and practice of harassing [Mr. Hougland],’ and ‘engag[ed] in offensive conduct’ and/or ‘act[ed] in a hostile and abusive manner,’ Mr. Hougland’s counsel never asked Ms.

Almadova if she made any specific age-based statements to Mr. Hougland or whether she engaged in any conduct that might be perceived as age-related.”].)

In

DeClue’s declaration, he attests that “[b]efore the employment lawsuit was filed, I conducted a reasonable inquiry into the facts of this matter, which included interviewing Mr. Hougland, meeting and conferring with Mr. Rogal, and reviewing the limited documents available to me. Many of the documents were not available to me because CCMSI failed to produce Mr. Hougland’s personnel file. Based on my understanding of the facts, I believed that Ms. Almadova was the person responsible for causing Mr. Hougland’s termination. Also, based on the facts presented to me, including the representations made by Mr. Hougland and Mr. Rogal, I had a reasonable belief that Mr. Hougland had viable grounds to bring an age harassment claim against Ms. Almadova.” (DeClue Decl., ¶ 53.) DeClue further declares that “Mr. Hougland relayed to me that during his termination meeting, a female in management was on the call and made age-related comments. At the time, I believed that Mr. Hougland was referring to Ms. Almadova since she was the person who harbored animosity towards Mr. Hougland and caused his termination. I later learned that it was Ms. Rhonda Stuebe that was on the phone at the meeting and made comments about Mr. Hougland retiring, my belief was made in good faith based on this context.” (DeClue Decl., ¶ 56.) Attorney Defendants’ motion asserts that “Mr. DeClue only learned of the identity issue through deposition testimony more than a year after filing and promptly sought to correct it. (DeClue Decl. ¶¶ 53, 54, 56.) A reasonable error corrected once discovered is not evidence of malice.” (Mot., 20:3-5.)

However,

Plaintiff’s opposition asserts that “[t]he Attorney Defendants subjected Almadova to a year of frivolous litigation based on an assumption.

When Hougland supposedly told the Attorney Defendants that a ‘female in management’ suggested retirement, they had a duty to ask the obvious follow-up question: ‘Do you know who she was?’ Instead, with shocking indifference (i.e., malice), they simply assumed he meant Almadova despite the clear indicator that he did not, i.e., he did not use her name. Maintaining the charade of the Attorney Defendants’ mistake-based defense further requires that they never asked Hougland who participated in his termination meeting, a rather basic investigatory fact to have been overlooked in an employment case hinging on termination.” (Opp., 18:3-10.)

As

noted above, Plaintiff contends that the Attorney Defendants knew Plaintiff was not the female in management that suggested retirement by January 29, 2025, the date of Almadova's deposition, because they did not ask Plaintiff "a single question about alleged age-based statements," and "[d]espite this, they still refused to dismiss her when faced with evidence in support of her summary judgment motion in March 2025, and ultimately waited until April 4, 2025 to propose dismissal without prejudice and with a waiver of fees and costs. (Id. at ¶¶ 17-35, Ex. 11.) This was not a serious offer." (Opp., 18:11-16.)

A

finding of malice is supported when there is "evidence that an attorney failed to conduct an adequate investigation before filing a lawsuit." (Citizens, supra, 46 Cal.App.5th at p. 607 [internal citation omitted].) In Citizens, the Court of Appeal found "sufficient evidence of malice," in part, because the attorneys "conducted little investigation into [plaintiff's] claims, even when significant questions were raised regarding the validity of her claims." (Id. at pp. 607-608.)

The court noted that "there [wa]s enough evidence here that satisfies [the plaintiff's] burden with respect to this element," and that even when "circumstances do not conclusively establish malice, they [may be] sufficient to allow the issue to go to the trier of fact for resolution." (Id. at p. 608.) From the evidence presented by Plaintiff and DeClue's own declaration, Attorney Defendants did not conduct an investigation into the comment allegedly made by Plaintiff before initiating the lawsuit. Accordingly, Plaintiff presents competent evidence that Attorney Defendants acted maliciously.

Based

on the foregoing, Plaintiff made a prima facie factual showing she meets the elements of a malicious prosecution cause of action and that there is a probability she will succeed. (See Sweetwater, supra, 6 Cal.5th at p. 940.)

Conclusion

Attorney Defendants' motion to strike the sole cause of action of the complaint is DENIED.

Attorney Defendants are ordered

to give notice of this Order.

DATED: July
21, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court